

# HOUSE . . . . . No. 2285

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## The Commonwealth of Massachusetts

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PRESENTED BY:

*Steven S. Howitt*

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act creating a commission to study the effects of unfunded mandates on municipalities.

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PETITION OF:

| NAME:                   | DISTRICT/ADDRESS:  | DATE ADDED:      |
|-------------------------|--------------------|------------------|
| <i>Steven S. Howitt</i> | <i>4th Bristol</i> | <i>1/14/2025</i> |

# HOUSE . . . . . No. 2285

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By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 2285) of Steven S. Howitt relative to establishing a special commission to study the effects of unfunded mandates on municipalities. Municipalities and Regional Government.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 2070 OF 2023-2024.]

## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)

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An Act creating a commission to study the effects of unfunded mandates on municipalities.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 39 of the General Laws, as appearing in the 2022 Official Edition, is hereby  
2 amended by inserting after Section 24 the following new section: -

3           Section 25. There shall be a commission on unfunded mandates on municipalities,  
4 hereinafter referred to as the commission. The commission shall consist of 7 members: three of  
5 whom shall be appointed by the governor, one of whom shall be a municipal official, who shall  
6 serve as co-chair; the director of the division of local mandates, hereinafter referred to as  
7 director, who shall also serve as co-chair; one member nominated by the Massachusetts  
8 Municipal Association; one member nominated by the Massachusetts Treasurer's and Collector's  
9 Association; and one member nominated by the Massachusetts Town Clerk's Association.

10           Said members shall serve a term of two year from the date of appointment, unless sooner  
11 removed by the governor upon the recommendation of the nominating organization after  
12 consultation with said director. When a vacancy occurs, a new member representing the same  
13 office shall be appointed to fill the remainder of the unexpired term.

14           Members of the commission shall serve without compensation. The commission shall  
15 compile a list of unfunded mandates and their costs to municipal government, and shall file this  
16 list with the clerks of the senate and the house of representatives together with proposals, if any,  
17 to mitigate the effects of such mandates.

18           The commission shall have the following responsibilities:

19           1. to review and analyze all unfunded local mandates from state and federal authorities,  
20 and to deliver an economic impact report of such effects on municipalities to the governor, and  
21 to the minority and majority leadership of the House and Senate;

22           2. to act as an independent advocate for the interests of local governments in their  
23 relations with state and federal governments;

24           3. to promulgate rules and regulations governing its procedures and those of the executive  
25 committee; and

26           4. to perform such other like services as the commission shall decide upon.